

25STCV32525 25STCV32525

County: los-angeles

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Case Number: 25STCV32525 Hearing Date: July 13, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling - Revised

25STCV32525

CARLA

LOPEZ vs VAN NUYS-T, INC., DBA KEYES TOYOTA, et al.

July

13, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES TO
DEFENDANT VAN NUYS-T, INC., SET ONE, AND SANCTIONS.

RULING:

The Motion is granted as
to sanctions, and otherwise ordered off calendar, considering supplemental
responses reported in the supplemental Declaration filed July 9, 2026.

On or before August 7,
2026, Defendant VAN NUYS-T, INC., dba KEYES TOYOTA, and Kolar & Associates,
jointly and severally, shall pay discovery sanctions in the sum of \$1,669.94 to
Plaintiff CARLA LOPEZ, the Court finding the absence of substantial
justification. (E.g., Code Civ. Proc., § 2023.030.)

I.
BACKGROUND

On November 6, 2025,
CARLA LOPEZ (Plaintiff) filed a Complaint against VAN NUYS-T, INC., dba KEYES
TOYOTA and TRAVELERS CASUALTY AND SURETY COMPANY OF AMERICA (Defendants)

Per Stipulation, on March
19, 2026, Plaintiff filed a Second Amended Complaint (SAC), listing Causes of
Action for:

1.
VIOLATION OF THE CONSUMERS LEGAL REMEDIES ACT, CIVIL CODE § 1750, ET SEQ.

2.
FRAUD & DECEIT

3.
NEGLIGENT MISREPRESENTATION

4.
VIOLATION OF THE UNFAIR COMPETITION LAW, BUSINESS & PROFESSIONS CODE §
17200, ET SEQ.

5.
VIOLATION OF VEHICLE CODE § 11711.

Plaintiff alleges that
automobile dealer KEYES TOYOTA (Defendant) misrepresented and concealed, as to

Plaintiff's purchased 2020 Toyota Highlander's accident and damage history, certification, and inspection.

On May 26, 2026,

Plaintiff filed the Motion to Compel Further Responses to Special Interrogatories, numbers 2 and 6, on grounds that responses are evasive and incomplete, and discovery objections lack merit. Plaintiff additionally requests \$1,669.94 in sanctions against Defendant and its counsel, Kolar & Associates.

Defendant opposes, based upon counterarguments that supplemental responses will be served, and discovery responses, and the privacy objection, are proper. Those have been served. (Supplemental Declaration of CHAD G. CHAPMAN, filed 7/9/26.)

II.

LEGAL STANDARD

If interrogatory

responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1190.)

Even where satisfactory

responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase "substantial justification" has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) "If the party seeking a monetary sanction meets its burden

of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

III.

ANALYSIS

Plaintiff seeks further, code-compliant responses to Special Interrogatories 2 and 6, and monetary sanctions.

Defendant responds that the Motion is moot, because Defendant agreed to provide further substantive responses, and will serve them as soon as verifications are signed. Additionally, Defendant contends that the responses properly state an inability to answer number 2, and a privacy objection to providing the prior vehicle owner's name, telephone number, and address. Finally, Defendant maintains that there is substantial justification for the above-referenced reasons.

"While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Here, the response to number 2 improperly failed to state a reasonable and good faith effort already made, rather than to be accomplished in the future. If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

And the response to number 6 unjustifiably stated a privacy objection to witness contact information. Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 544, 561.) Analogously, form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250.)

If those responses had been code-compliant, the instant Motion would not have been necessary.

For the above reasons, the Court finds an absence of substantial justification, and awards sanctions.

IV.

CONCLUSION

The Court grants the Motion as to sanctions, and orders it off calendar without prejudice to make any proper motion to compel addressing the most recent supplemental responses.